

7	Tsehanovsky vs. Owen 30-2024-01410660-CU-PA-CJC	Motion for an Order to Stay Civil Proceedings and/or Discovery Directed at Defendant Evan Owen Defendant, Evan Owen’s motion for an order to stay civil proceedings and/or discovery directed at him, is DENIED. There is no showing defendant has sought to diligently resolve his criminal case, and the court will not allow the civil case to languish while the criminal case makes its way through the court. The court takes judicial notice of the minutes in <i>People v. Owen</i>, case no. 23HF2015, where the court notes beginning February 2024, defendant requested or agreed to a continuance of the pre-trial hearing or preliminary hearing on 2/9/2024, 4/18/2024, 7/8/2024, 9/18/2024, 1/7/2025, 3/20/2025, 5/2/2025, 5/16/2025, 6/6/2025, 7/25/2025, 8/15/2025, 10/31/2025, 1/16/2026, 3/13/2026, 6/26/2026, and 8/20/2026. Plaintiff is entitled to an expeditious and fair resolution of her case. (<i>Fuller v. Superior Court</i> (2001) 87 Cal.App.4th 299, 306.) “The fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation.” (<i>Ibid.</i>) Plaintiff to give notice.
8	Pinner vs. Griffin 30-2022-01288013-CU-BC-CJC	Petition to Confirm, Correct, or Vacate Arbitration Award The Petition of Petitioners John E. Pinner and Marilyn M. Pinner, individually and as trustees of the Pinner Family Trust, to Confirm Arbitration Award issued by Arbitrator Viggo Boserup on May 28, 2026, is GRANTED. Respondents Dirk T. Griffin and Pinner Construction Co. Inc. oppose confirmation of the Arbitration Award on grounds Arbitrator exceeded his powers. (Code Civ. Proc., § 1286.2, subd. (a)(4).) Respondents contend the Arbitrator exceeded his powers by acting without jurisdiction to re-adjudicate issues he previously adjudicated in a prior arbitration between the parties in which the Arbitrator issued a Final Award on November 17, 2021 (“First Arbitration”). (Kellam Decl., ¶ 4, Ex. C.) Respondents argue the Arbitrator exceeded his powers by deciding in the Second Arbitration the issues of tax refund and Petsense stock which the Arbitrator previously determined in the First Arbitration. In the Second Arbitration, the Arbitrator issued a Corrected Final Award (“Final Award”), in which he considered the arguments

		he had previously decided these issues and fully explained why his decision in the First Arbitration as to both issues remained undisturbed. (Final Award, pp. 6-7, 10-11.) Respondents have failed to show an inconsistency between the awards in the First Arbitration and the Second Arbitration. Further, the Arbitrator's factual and legal determinations are not reviewable on the merits. (<i>Moshonov v. Walsh</i> (2000) 22 Cal.4th 771, 775 [arbitrators do not exceed powers by rendering erroneous decision on legal or factual issue, so long as issue was within the scope of controversy submitted].) Petitioners to submit a simple, standalone judgment only (no notice of ruling, no attached arbitration award) within 5 days. Petitioners to give notice. Application for Writ of Possession after Hearing The application of Petitioners John E. Pinner and Marilyn M. Pinner, Individually and as Trustees of the Pinner Family Trust, for an order for issuance of writ of possession after hearing against respondents Dirk T. Griffin and Pinner Construction Co. Inc. is DENIED. A writ of possession pursuant to section 512.010 is issued as a provisional remedy and permits a plaintiff to obtain possession of tangible personal property <i>prior to trial</i>. Because the court granted the Petition to Confirm the Arbitration Award, the proper procedure would be post-judgment enforcement. Petitioners to give notice.
9	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Continued to 9/18/2026.
10	Nguyen vs. Ma 330-2025-01518657-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Lance Ma's Demurrer to Plaintiff Tuan Nguyen's First Amended Complaint is OVERRULED. The Court GRANTS Defendant's request for judicial notice of the existence of the documents, but not of the truth of their contents.